

SOFTWARE SERVICES AGREEMENT

This Software Services Agreement ("Agreement") is entered into as of June 1, 2025, by and between Acme Corp, a Delaware corporation ("Client"), and TechVendor Inc, a California corporation ("Vendor").

1. SERVICES

Vendor agrees to provide software development and maintenance services as described in Exhibit A attached hereto (the "Services"). Vendor shall perform the Services in a professional and workmanlike manner consistent with industry standards.

2. TERM

This Agreement shall commence on the Effective Date and shall continue for a period of twelve (12) months, unless earlier terminated in accordance with Section 10 of this Agreement. The Agreement may be renewed for successive one-year terms upon mutual written agreement of the parties no later than thirty (30) days prior to the expiration of the then-current term.

3. COMPENSATION AND PAYMENT

Client shall pay Vendor a monthly retainer fee of \$15,000, due within thirty (30) days of invoice. All invoices not paid within thirty (30) days shall accrue interest at the rate of 1.5% per month. Client shall reimburse Vendor for all pre-approved out-of-pocket expenses incurred in connection with the Services.

4. INTELLECTUAL PROPERTY

All work product, inventions, and deliverables created by Vendor in the performance of the Services shall be considered works made for hire and shall be the exclusive property of Client. To the extent any such work product does not qualify as a work made for hire, Vendor hereby assigns to Client all right, title, and interest therein.

5. CONFIDENTIALITY

Each party agrees to hold in strict confidence all Confidential Information received from the other party and to use such Confidential Information solely for purposes of performing its obligations under this Agreement. "Confidential Information" means any non-public information disclosed by one party to the other, whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential.

6. DATA SECURITY

Vendor shall implement and maintain appropriate technical and organizational measures to protect Client data against unauthorized access, disclosure, alteration, or destruction. Vendor shall promptly notify Client in writing within 48 hours upon discovery of any actual or suspected data breach affecting Client data.

7. WARRANTIES

Vendor represents and warrants that: (a) it has the right and authority to enter into this Agreement; (b) the Services will be performed by qualified personnel; (c) the deliverables will materially conform to the specifications set forth in Exhibit A; and (d) the deliverables will not infringe any third-party intellectual property rights.

8. LIMITATION OF LIABILITY

IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR RELATED TO THIS AGREEMENT, REGARDLESS OF WHETHER SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. VENDOR'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CLIENT IN THE THREE (3) MONTHS PRECEDING THE CLAIM.

9. INDEMNIFICATION

Each party (the "Indemnifying Party") shall indemnify, defend, and hold harmless the other party and its officers, directors, employees, and agents from and against any claims, liabilities, damages, judgments, awards, losses, costs, expenses, or fees (including reasonable attorneys' fees) arising out of or relating to the Indemnifying Party's breach of this Agreement or negligence or willful misconduct.

10. TERMINATION

Either party may terminate this Agreement upon thirty (30) days' written notice to the other party. Client may terminate this Agreement immediately upon written notice if Vendor breaches any material term and fails to cure such breach within fifteen (15) days after receipt of written notice specifying the breach. Upon termination, all outstanding fees for Services rendered through the date of termination shall become immediately due and payable.

11. DISPUTE RESOLUTION

The parties shall attempt in good faith to resolve any dispute arising out of or relating to this Agreement through negotiation. If the parties are unable to resolve the dispute within thirty (30) days of written notice from one party to the other, the dispute shall be submitted to binding arbitration administered by the American Arbitration Association under its Commercial Arbitration Rules. The arbitration shall take place in San Francisco, California.

12. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of law provisions. Each party hereby consents to the exclusive jurisdiction of the state and federal courts located in San Francisco County, California.

for any action not subject to arbitration under Section 11.

13. ENTIRE AGREEMENT

This Agreement, together with all exhibits and attachments, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior and contemporaneous agreements, representations, and understandings. This Agreement may not be amended except by a written instrument signed by authorized representatives of both parties.

14. SEVERABILITY

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect. The invalid or unenforceable provision shall be modified to the minimum extent necessary to make it valid and enforceable while preserving the parties' original intent.

15. FORCE MAJEURE

Neither party shall be liable for any delay or failure to perform its obligations under this Agreement to the extent such delay or failure is caused by circumstances beyond such party's reasonable control, including acts of God, government actions, pandemics, natural disasters, or failures of third-party infrastructure, provided that the affected party promptly notifies the other and uses commercially reasonable efforts to resume performance.

EXHIBIT A - SCOPE OF SERVICES

Vendor shall provide the following services: (i) backend API development in Go; (ii) database design and migration management; (iii) code review and architecture guidance; (iv) weekly status reports; and (v) on-call support not to exceed 8 hours per month.